



EVL1 — Introduction to Evidence and Proof

Module 5 — Burden of Proof

Lesson 1: The Burden of Proof

Student Lesson Notes

WHAT IS THE BURDEN OF PROOF?

The Section 102 Test

Burden of Proof: The obligation placed on a party in legal proceedings to prove the facts necessary to establish their case. The party who bears the burden must adduce sufficient evidence to satisfy the court. If they fail, they lose on that issue.

Section 101, Evidence Act Cap. 8: Whoever desires any court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts must prove that those facts exist.

Section 102, Evidence Act Cap. 8: The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side.

THE SECTION 102 TEST: Ask — if both sides said nothing and called no evidence whatsoever, who would lose? That party bears the burden of proof. This is the most practically useful test for identifying who bears the burden in any Ugandan case.

Two Types of Burden

Legal Burden (Persuasive Burden): The obligation to prove a fact to the required standard of proof by the END of the case. This burden does NOT shift during proceedings. It remains fixed on the party who bears it throughout.

Evidential Burden (Burden of Adducing Evidence): The obligation to raise sufficient evidence on a particular issue to put it in issue before the court. This burden CAN shift between parties during proceedings.

CRITICAL DISTINCTION: The legal burden determines who must ultimately prove the case. The evidential burden determines who must raise an issue at a particular point in the proceedings. These can be on the same party or different parties at different stages.

Illustration — Ugandan Murder Trial

The legal burden lies on the prosecution throughout — to prove the accused caused the death, that it was unlawful, and that the accused had malice aforethought.

The evidential burden: if the accused raises an alibi, the accused bears the evidential burden of raising sufficient evidence of the alibi to make it a live issue. The prosecution must then deal with it. BUT the legal burden of disproving the alibi NEVER shifts to the accused — the prosecution must disprove it as part of proving its case beyond reasonable doubt.

Francis Xavier Kayemba v Uganda [1983] HCB 330, High Court of Uganda — A prima facie case is not simply evidence that might possibly sustain a conviction, but evidence on which a reasonable tribunal could convict if the defence offers no explanation. This marks where the prosecution discharges its initial evidential burden.

THE LEGAL BURDEN

Allocation in Criminal Cases

In criminal proceedings, the legal burden lies on the prosecution as a matter of constitutional law under Article 28(3)(a) of the Constitution of Uganda 1995. The prosecution must prove every element of the offence beyond reasonable doubt. The accused bears no legal burden to prove innocence.

Woolmington v DPP [1935] AC 462, House of Lords — *persuasive Commonwealth authority in Uganda* — Throughout the web of criminal law one golden thread is always to be seen: it is the duty of the prosecution to prove the prisoner's guilt. The accused bears no burden to prove innocence.

Exceptions — When the Accused Bears a Legal Burden

- Statutory exceptions — various statutes contain reverse onus provisions. Example: where the law provides it is a defence for the accused to prove they held a valid licence, the accused bears the legal burden on that specific issue.
- Section 103, Evidence Act Cap. 8 — specific statutes can vary the allocation of the burden.
- Section 106, Evidence Act Cap. 8 — when any fact is especially within the knowledge of a person, the burden of proving that fact is upon that person. Important in criminal cases where only the accused knows their purpose or state of mind.
- Defence of insanity — Section 11, Trial on Indictments Act Cap. 25 places the legal burden of proving insanity on the accused on the balance of probabilities.

Allocation in Civil Cases

In civil proceedings, the legal burden follows Section 101 of the Evidence Act Cap. 8 — whoever asserts a fact must prove it. Both parties may bear legal burdens on different issues within the same proceedings. The plaintiff proves the claim; the defendant proves any affirmative defence raised.

THE EVIDENTIAL BURDEN

How the Evidential Burden Works

The evidential burden can be thought of as a spotlight. At any given point in the trial, the spotlight of evidential obligation falls on one party — they must adduce sufficient evidence to keep the relevant issue alive. When they do so, the spotlight moves to the other party.

In a Criminal Trial

- Start of trial: both legal burden and initial evidential burden are on the prosecution.
- Close of prosecution case: court assesses whether the prosecution has adduced sufficient evidence to establish a prima facie case. Standard from *Francis Xavier Kayemba v Uganda* [1983] HCB 330.
- No case submission: if prosecution has not established a prima facie case, defence submits no case to answer. If upheld, accused acquitted — prosecution failed to discharge even the initial evidential burden.
- If prima facie case established: accused is called to answer. Evidential burden effectively shifts — accused must decide whether to give evidence, call witnesses, or rely on weaknesses in the prosecution case.
- Specific defences (alibi, self-defence, provocation): accused bears the evidential burden of raising sufficient evidence to make the defence a live issue. Once raised, prosecution must respond and disprove beyond reasonable doubt.

Key Point

The legal burden of disproving a defence NEVER shifts from the prosecution to the accused. The prosecution is not absolved of its legal burden merely because the accused bore the evidential burden of raising the defence initially.

In Civil Proceedings

Both parties may bear burdens on different issues. The plaintiff first adduces evidence on the claim. Once sufficient evidence is established, the evidential burden shifts to the defendant. The defendant then adduces evidence. This continues issue by issue throughout the proceedings.

WHO BEARS THE BURDEN?

Criminal Cases

- General rule: prosecution bears the legal burden of proving every element of the offence beyond reasonable doubt — constitutional requirement under Article 28(3)(a).
- Exception: specific statutory reverse onus provisions may place the burden of proving specific facts on the accused.
- Exception: the defence of insanity under Section 11 Trial on Indictments Act Cap. 25 — accused must prove on balance of probabilities.
- Section 106 Exception: facts especially within the accused's knowledge — burden falls on the accused.

Civil Cases

- Plaintiff bears the legal burden on all elements of the cause of action.
- Defendant bears the legal burden on affirmative defences raised.
- Both parties may bear burdens on different issues simultaneously.
- Standard: balance of probabilities — the asserting party must show their version is more probable than not.

Reverse Onus Provisions and the Constitution

Various Ugandan statutes contain reverse onus provisions placing the burden on the accused. These must be read consistently with Article 28(3)(a) of the Constitution. Where a provision imposes only an evidential burden — requiring the accused to raise an issue — it is generally constitutional. Where it imposes a full legal burden on the accused to disprove an element of the offence, constitutional questions arise.

LESSON SUMMARY — KEY POINTS

- ✓ Burden of proof: the obligation on a party to prove facts necessary to establish their case
- ✓ Section 101 Evidence Act Cap. 8: whoever asserts a fact must prove it
- ✓ Section 102 Evidence Act Cap. 8: the burden lies on the person who would fail if no evidence were given on either side
- ✓ Two types: legal burden (fixed, does not shift) and evidential burden (can shift during proceedings)
- ✓ In criminal cases: prosecution bears the legal burden of proving every element beyond reasonable doubt throughout — Article 28(3)(a) Constitution of Uganda 1995
- ✓ Woolmington v DPP [1935] AC 462 — the golden thread principle — persuasive authority in Uganda
- ✓ Francis Xavier Kayemba v Uganda [1983] HCB 330 — prima facie case standard in Uganda
- ✓ Exceptions: insanity defence (accused proves on balance of probabilities under Trial on Indictments Act Cap. 25), Section 106 (facts especially within accused's knowledge), specific statutory reverse onus provisions

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. State the Section 102 test for identifying who bears the burden of proof.
2. What is the difference between the legal burden and the evidential burden?
3. Which constitutional provision places the burden of proof on the prosecution in Ugandan criminal cases?
4. State the standard for a prima facie case established in Francis Xavier Kayemba v Uganda [1983] HCB 330.
5. Under which provision of the Evidence Act Cap. 8 does the burden of proving a fact fall on the person with special knowledge of that fact?